



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
DATE: 5-11-2021
BY: **MA. JULINA B. JUTILO**
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 40TH REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON MAY 5,
2026

PRESENT:

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member/ Municipal Vice- Mayor/ Presiding Officer
Hon. Harvey S. Manawatao		SB Member
Hon. Tanie A. Quillano		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Rencio P. Valeroso		SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ON LEAVE:

REGULAR SANGGUNIANG BAYAN MEMBER:

Hon. Michael C. Escuyos		SB Member
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ABSENT:

Hon. Jane V. Plaza		Municipal Vice- Mayor/ Acting Municipal Mayor
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ORDINANCE NO. 52
Series of 2026

**“AN ORDINANCE STRENGTHENING PRICE MONITORING MECHANISM, PROHIBITING HOARDING
AND PROFITEERING AND PRESCRIBING PENALTIES FOR VIOLATION THEREOF IN THE MUNICIPALITY
OF CARMEN, SURIGAO DEL SUR”**

Author: Hon. Harvey S. Manawatao

Enacted: All Members Present

EXPLANATORY NOTE

WHEREAS, Section 16 of Republic Act No 7160 otherwise known as the Local Government Code of 1991 mandates the Local Government Unit to exercise powers necessary to promote the general welfare including but not limited to the maintenance of peace and security and the preservation of comfort and convenience of the inhabitants;

WHEREAS, Republic Act No 7581 otherwise known as the Price Act as amended by Republic Act No 10623 provides protection to consumers by stabilizing the prices of basic necessities and prime commodities and by prescribing measures against undue price increases especially during periods of emergency or calamity;

WHEREAS, the on-going geopolitical tensions in the Middle East have caused significant volatility in the global petroleum market leading to a sustained increase in the prices of fuel, Liquified Petroleum Gas (LPG) and electricity;

WHEREAS, this energy crisis has triggered a ripple effect on the economy resulting in the rising costs of transportation, agricultural inputs and the retail prices of food and other essential goods within the municipality;

WHEREAS, some unscrupulous traders and retailers may take advantage of the current economic situation by engaging in hoarding and profiteering further burdening the purchasing power of the citizenry;

WHEREAS, it is the policy of the Municipality to protect its constituents from the detrimental effects of artificial shortages and unconscionable price hikes during times of energy and economic distress;

WHEREAS, there is an urgent need to strengthen the Local Price Coordinating Council (LPCC) and enhance its monitoring mechanisms to ensure that the Suggested Retail Price (SRP) and Price Freeze protocols where applicable and are strictly followed;

WHEREAS, the Sangguniang Bayan of Carmen, Surigao del Sur finds it imperative to penalize acts of price manipulation to deter illegal business practices and ensure the equitable distribution of essential supplies;

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

SECTION 1. SHORT TITLE- This Ordinance shall be known as the ANTI-HOARDING AND FAIR PRICING ORDINANCE 2026.

SECTION 2. OBJECTIVES- To protect consumers from unreasonable price increases, artificial shortage and unfair trade practices exacerbated by the global situation.

SECTION 3. DEFINITION OF TERMS-

1. Hoarding- the persistent and excessive acquisition of items.
2. Profiteering- the unethical practice of charging excessively high prices for essential goods or services particularly during crises, shortages and emergencies.
3. Price Freeze-a government mandated restriction preventing the increase of prices for specific goods, services for a set period.
4. Suggested Retail Price- is a price a manufacturer or producer recommends retailer charge for a product or goods.
5. Price Tagging- is a price labeled to a product to indicate its retail price.
6. Municipal Price Coordinating Council (MPCC)- is responsible for the monitoring, analyzing and stabilizing the prices of basic necessities and prime commodities at the local level ensuring compliance to RA 7581 otherwise known as the Price Act.

SECTION 4. MANDATORY PRICE TAGGING- All goods, products and services offered for sale must have price tag clearly visible to consumers.

SECTION 5. REPORTORIAL REQUIREMENTS- All gasoline stations, hardware stores and retailers are required to submit monthly report to the Municipal Energy Economic Task Force regarding their inventory, supply delivery and selling prices during crisis and emergency situations.

SECTION 6. CREATION AND COMPOSITION- There is hereby created a Municipal Price Coordinating Council which shall be composed of the following:

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| Chairperson | - | Municipal Mayor |
| Vice Chairperson | - | Municipal Vice- Mayor |
| Members | - | SB Chairperson Committee on Infrastructure, Public Works, Housing and Land Utilization and Trade and Industry, Urban Planning and Development |
| | - | Municipal Treasurer |
| | - | Municipal Agriculturist |
| | - | Municipal Health Officer |
| | - | Municipal Local Government Operations Officer |
| | - | DTI Representative |
| | - | Municipal Engineer |
| | - | Municipal Planning and Development Coordinator |
| | - | Market Supervisor |
| | - | President of Carmen Business Club or any Representative |
| | - | President to the CSOFOC |
| | - | Chief of Police or any Representative |

SECTION 7. DUTIES AND FUNCTIONS OF THE MUNICIPAL PRICE COORDINATING COUNCIL-

- a. Price Monitoring and Enforcement- conduct regular inspections of public and private markets to check for compliance with SRP and detect unjustified price increases
- b. Coordination and Analysis- coordinate with member agencies and sectors to analyze cause of price fluctuations and supply shortages.
- c. Emergency Measures- implement measures to maintain stable prices especially during disasters, calamities or crises as outlined in DILG Memorandum Circular No 2018- 128 and Joint Memorandum Circular No. 03, Series of 2020.
- d. Consumer Protection- activate consumer hotlines and Timbangan Ng Bayan to ensure accurate weighing.
- e. Reporting- submit yearly reports on price monitoring activities to the Sangguniang Bayan through the Chairman Committee on Trade and Commerce

SECTION 8. PROHIBITED ACTS-

- 1. Hoarding- undue accumulation of goods with the intention of creating artificial shortage or increase prices.
- 2. Profiteering- selling goods at prices exceeding the Suggested Retail Price (SRP) or adding unreasonable profit margins beyond what is allowed by law.

SECTION 9. PENALTIES- Any person or entity found violating this Ordinance shall be penalized.

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| FIRST OFFENSE | - | Stern Warning |
| SECOND OFFENSE | - | a fine of One Thousand Five Hundred Pesos (Php1,500.00) |
| THIRD OFFENSE | - | a fine of Two Thousand Five Hundred Pesos (Php 2,500.00) |
| FOURTH AND SUCCEEDING OFFENSES | - | a temporary revocation of Business Permit for one (1) to three (3) months |

SECTION 10. IMPLEMENTATION- The Municipal Price Coordinating Council (MPCC) in coordination of the Municipal Energy Economic Task Force shall strictly monitor, check and implement this Ordinance.

SECTION 11. INFORMATION DISSEMINATION- The Barangay Council in coordination with the MPCC shall conduct an Information, Education Campaign in their respective barangays.

SECTION 12. SEPARABILITY CLAUSE- If any section, paragraph or provision of this Ordinance is declared invalid or unconstitutional, the remaining provisions shall not be affected.

SECTION 13. REPEALING CLAUSE- All Ordinances, Executive Order, Rules and Regulations inconsistent with this Ordinance are hereby repealed or modified accordingly.

SECTION 14. EFFECTIVITY CLAUSE- This Ordinance shall take effect fifteen (15) days after the posting in at least two (2) conspicuous places in the Municipality immediately after its approval.

ENACTED this 5th day of May, 2026 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:

CARLOS S. ESTRADA
SB Member/
Acting Municipal Vice- Mayor/
Presiding Officer

APPROVED:

JANE V. PLAZA
Municipal Vice- Mayor/
Acting Municipal Mayor
5/11/2024